TRACY PAPAYI

Versus

THE STATE

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 13 AND 27 FEBRUARY 2026

Application for bail pending trial

G. Katenaire, for the applicant
K.M Nyoni, for the respondent

KABASA J: This bail application was heard on 13 February 2026. After counsel for the applicant made his submissions and *Mr Nyoni* for the state in turn made his submissions, I dismissed the application and gave my reasons in an *ex tempore* judgment. I have now been asked for written reasons. These are they:-

The applicant was arrested and faces two counts. The first count is contravening s157(1)(a) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] for possession of 253 sachets of dagga weighing 1,9 kg. The second count relates to the unlawful possession of prescription preparations when she is not so authorised, the charge being contravening section 73(1) of the Medicines and Allied Substances Control General Regulations SI 150/1991 as read with section 38 of the Medicines and Allied Substances Control Act Chapter 15:03. She had in her possession 31 x 100 millilitres of benylin cough syrup.

The circumstances which led to the applicant's arrest are that police received information to the effect that applicant was in possession of the aforementioned drugs at Bulawayo Centre which is along 9th/10th Avenue and Fort Street. Acting on that information the police proceeded to this place and there saw the applicant who was seated on a greenish 20 litre plastic container which had a black lid. She was transacting with different people. The police approached her and after a search recovered 253 sachets of dagga and 31 x 100 millilitres of benylin which were in the plastic bucket.

In seeking admission to bail pending trial the applicant's counsel argued that there is no compelling reason to deny her bail and she is not likely to abscond as the state case is limping. Affidavits from two witnesses, one a fellow vendor and another who identified himself as a bouncer were used in support of the assertion that the state case was weak. The bouncer asserted that he saw vendors abandoning their wares and scurrying away whilst plain clothes policemen were searching the vendors' wares. They had wanted to pin the bucket which he later saw them carrying away together with the applicant on him. He did not get to know what the bucket contained. The other vendor whose affidavit was also part of the applicant's application was at the scene and observed the applicant being arrested but she did not see what was recovered from her.

In opposing the application, *Mr Nyoni* contended that the quantity of the drugs is substantial, evidence is from police officers who arrested the applicant after a tip off and recovered the drugs. The state case is strong, conviction is very likely and the evidence points to dealing in drugs and not just possession. These factors would make for an incentive to abscond, jeopardising the proper administration of justice.

The factors a court considers in applications of this nature have been stated and re-stated in a plethora of cases.

The court has to strike a balance between the liberty of the individual and the proper administration of justice.

Section 50(1)(a) of the Constitution makes the admission to bail a right unless there are compelling reasons justifying denial of bail. Where the proper administration of justice is not likely to be interfered with, the courts are urged to lean in favour of granting bail (*S* v *Biti* 2002 (1) ZLR 115 (H)).

This is so because in applications for bail, the presumption of innocence operates in favour of such applicant (*S* v *Ncube* 2001 (2) ZLR 556 (S)).

The seriousness of an offence on its own is no reason to deny bail and bald unsubstantiated reasons do not suffice. (*S* v *Hussey* 1991 (2) ZLR 187 (S), *S* v *Malunjwa* HB 34-03).

However the seriousness of the offence, the likely sentence and the strength of the state case which may result in an incentive to abscond ought not to be overlooked (*S* v *Ndlovu* 2001 (2) ZLR 261 (H), *S* v *Jongwe* 2002 (2) ZLR 209 (S), *S* v *Makamba* (3) 2004 (1) ZLR 367 (S)).

Section 117 of the Criminal Procedure and Evidence Act [Chapter 9:07] lists the grounds upon which bail may be refused in the interests of justice.

These are: - if the release on bail will –

(i) endanger the safety of the public or any particular person or the applicant will commit an offence referred to in the first Schedule or
(ii) not stand trial or appear to receive sentence or
(iii) attempt to influence or intimidate witnesses or to conceal or destroy evidence or
(iv) undermine or jeorpadise the objective or proper functioning of the criminal justice system, including the bail system.

In considering these factors the court may consider any other factor which in the opinion of the court should be taken into account.

The nation is grappling with the proliferation of drugs. The drugs *in casu* were recovered in a very public place and in broad day light where vendors sell their wares. The quantity cannot possibly be for own consumption but sale and the allegations are that the applicant was observed transacting with different people.

This was not a random raid but a targeted one. The police were working on information. The vendor whose affidavit was attached in support of the applicant's application supports the assertion that the police were in plain clothes. They therefore had the opportunity to observe before pouncing.

This vendor said she fled and so did other vendors and they fled because they thought these were Municipal police out to arrest them. The manner of arrest and the recovery of these drugs paints a grave picture of the wanton selling of drugs to all and sundry.

The quantity is not small, the state's case is certainly not limping and the likelihood of a conviction is high and with such conviction the likelihood of a severe sentence is equally high. Human nature would obviously go for self-preservation and with that the incentive to want to escape.

The applicant denies the charges and asserts that the state case is very weak. She was arrested at HomeLink "whilst observing what self and other vendors initially suspected to be Bulawayo City Council Security who always confiscate our wares. I did not resist arrest in any way. I was taken to my vending spot where I observed police officers standing holding a 20 litre bucket approximately 6 metres from my vending spot. I cannot say much about the circumstances of its recovery as this was done out of my sight."

She completely distances herself from the bucket and surmises that the police were confused because vendors had fled.

I must hasten to say this is not a trial but a bail application. However the nature of the defence is an important consideration especially when the state has a strong *prima facie* case. If this was a targeted raid and not a random one, why would the police be confused? It would be different if they were just working on suspicion and decided to take a chance and search the vendors. They were however out on a mission following a tip off. One would say it is the applicant's defence which is weak rather the state case.

The courts must ensure the efficacy of the bail system and decisions of the courts must engender public confidence and not erode public confidence in the justice delivery system including the bail system. One minute a suspect is arrested under the circumstances detailed herein in full view of members of the public and the next that suspect is seeing going about their business as if nothing happened. This is not to suggest that the courts should be swayed by the perceptions of members of the public but where necessary, as *in casu,* public confidence in the system should not be unnecessarily eroded.

As already alluded to, the circumstances surrounding the arrest, the fact that this was a very public place, the quantity of drugs recovered, the drug peddling menace bedevilling the nation, the calls at national level to have legislation that speaks to the need not to grant bail in drug related cases, are all factors which work against the grant of bail.

I therefore held the view that the interests of justice and the protection of the efficacy of the bail system called for the denial of bail. The courts must be seen to complement the efforts of law enforcement agents and not be quick to release suspects on bail where the evidence against them make for a strong case and the chances of conviction very likely.

I therefore concluded that the applicant was not a good candidate for bail and accordingly dismissed the application for bail pending trial.

Katenaire-Mbeure Law Chambers, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners